

3.	<u>30-2025-01469475-CU-BC-CJC</u> Tucker vs. Jaguar Land Rover North America, LLC	Before the Court is one Motion for Order Granting Relief from the Court’s February 23, 2026, Order, brought by Defendant Jaguar Land Rover North America, LLC (“Defendant”) pursuant to California Code of Civil Procedure Section 473(b). ROA 81. Defendant requests that the Court set aside its Order granting Plaintiff’s Motion to Compel Deposition (“M-DEPO”) of Defendant’s Person Most Qualified (“PMQ”) and grant Defendant relief from sanctions entered against Defendant’s counsel in the amount of \$3,800. ROA 81, p.2; ROA 60. I. Discretionary Relief for Mistake under Section 473(b) California Code of Civil Procedure Section 473 provides “the court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” Cal. Civ. Proc. Code § 473(b). The statute further requires that an application for relief “be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted.” <i>Id.</i> Application for this relief “shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” <i>Id.</i> California Code of Civil Procedure section 473 is not limited to relief from default judgments or mistakes in pleadings. Although the statute appears in the chapter addressing “Mistakes in Pleadings and Amendments,” by its plain language, the statute authorizes a court to relieve a party from a “judgment, dismissal, <i>order</i>, or <i>other proceeding</i>” taken against that party” Cal. Civ. Proc. Code § 473(b) (emphasis added); <i>see also Zellerino v. Brown</i>, 235 Cal. App. 3d 1097, 1106 (1991) (finding that discovery motions are “proceedings” under the meaning of Section 473 and that parties may seek relief under Section 473 from courts’ orders issued in discovery proceedings where the relief sought is not provided in the applicable section of the
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		discovery act). California courts have consistently recognized the distinction between the discretionary and mandatory provisions of section 473(b). <i>See Minick v. City of Petaluma</i> ("<i>Minick</i>"), 3 Cal. App. 5th 15, 25 (2016). The discretionary provision applies broadly to "any judgment, dismissal, order, or other proceeding," whereas the mandatory attorney-fault provision is limited to defaults, default judgments, and dismissals. <i>Id.</i> As the court explained in <i>Minick</i>, the Legislature intentionally limited mandatory relief while preserving broad discretionary authority to set aside judgments, orders, and other proceedings entered through mistake, inadvertence, surprise, or excusable neglect. <i>Minick, supra</i>, 3 Cal. App. 5th at p. 26. However, while relief under the discretionary provision is available only where excusable neglect is found, the mandatory provision is appropriate even in cases of <i>inexcusable</i> neglect. <i>See Rodriguez v. WNT, Inc.</i> ("<i>Rodriguez</i>"), 116 Cal. App. 5th 791, 803 (2025). The mandatory provision has been applied in the discovery context where the resulting order falls within the statute's limited scope. <i>See Aldrich v. San Fernando Valley Lumber Co.</i>, 170 Cal. App. 3d 725, 736 (1985) ("an order for dismissal entered for failure to comply with an order compelling answers to interrogatories is the practical equivalent of a default judgment."). Applying this principle, the Court in <i>Rodriguez</i> held that a dismissal entered as a terminating discovery sanction qualified for mandatory relief under section 473(b), provided the statutory requirements were satisfied, including the submission of verified discovery responses. <i>Rodriguez, supra</i>, 234 Cal. App. 4th at 729 ("when relief is sought from a terminating sanction imposed for failing to provide discovery responses, the application must be accompanied by verified responses to the discovery in question."). Likewise, in <i>Matera v. McLeod</i>, the court held that a default judgment entered after an answer was struck as a discovery sanction constituted a default judgment eligible for mandatory relief based on an attorney affidavit
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	of fault. <i>Matera v. McLeod</i> (2006) 145 Cal. App. 4th 44, 67 (2006). Section 473 relief is not unlimited, however. Courts have declined to grant discretionary relief where the discovery violations resulted from a party's deliberate or willful misconduct rather than excusable neglect. <i>See Rodriguez, supra</i>, 116 Cal. App. 5th at 803. Likewise, mandatory relief is unavailable where both the attorney and the client share responsibility for the misconduct that resulted in the default or dismissal. <i>Id.</i>; <i>Lang v. Hochman</i> (2000) 77 Cal.App.4th 1225, 1248 (2000) ("where the parties to a lawsuit have contributed to a default or dismissal, they are not entitled to relief pursuant to subsection (b) of section 473.>"). Accordingly, section 473(b) is not confined to defaults or pleading errors. Its discretionary provision authorizes relief from discovery orders and other discovery-related proceedings when the statutory requirements are met, and no express provision in the relevant section of the discovery act provides for the relief sought. Its mandatory, attorney-fault provision, however, remains limited to defaults, default judgments, dismissals and, in the discovery context, orders imposing terminating sanctions. Plaintiff cites <i>Gilberd v. AC Transit</i> and <i>Morite of California v. Superior Court</i> to support the contention that courts have consistently "rejected efforts to circumvent the procedural safeguards of section 1008 by applying for relief from a Court's order under Section 473." ROA 90, p.3; <i>See Gilberd v. AC Transit</i> ("<i>Gilberd</i>"), 32 Cal. App. 4th 1494, 1501 (1995) (holding the notion that "the general relief mechanism provided in Code Civ. Proc., § 473, could be used to circumvent the jurisdictional requirements for reconsideration found in Code Civ. Proc., § 1008, would undermine the intent of the Legislature as specifically expressed in Code Civ. Proc., § 1008, subd. (e), which provides that no application to reconsider any order may be considered by any judge or court unless made according to that section."); <i>see also Morite of Cal. v. Super. Ct.</i> ("<i>Morite</i>"), 19 Cal. App. 4th 485, 490 (1993) (holding that "[section 1008] is the exclusive means for modifying, amending or
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		revoking an order. That limitation is expressly jurisdictional.”). The Court disagrees with Plaintiff’s interpretation of the cited authorities. First, the reviewing court in <i>Gilberd</i> found that a court granting <i>reconsideration</i> may do so <i>only</i> under the provisions of Section 1008, not on grounds that would otherwise satisfy the requirements of Section 473. <i>Gilberd, supra</i>, 32 Cal. App. 4th at 1498. There, respondents sought relief under both Sections 1008 and 473. <i>Id.</i> The lower court granted reconsideration. <i>Id.</i> At issue on appeal was whether the lower court had jurisdiction to grant reconsideration despite respondent having not met the requirement to present “new or different facts, circumstances, or law” to justify reconsideration. <i>Id.</i> at 1498-99. The reviewing court held that reconsideration was improperly granted because the statutory requirement that a motion for reconsideration be based on “new or different facts, circumstances, or law” is jurisdictional. <i>Id.</i> at 501. Accordingly, a trial court exceeds its jurisdiction by granting reconsideration when the moving party fails to satisfy that threshold showing. This does not, however, foreclose an applicant seeking relief from a prior order under Section 473. Second, <i>Morite</i> more appropriately stands for the proposition that a court may not <i>sua sponte</i> reconsider, modify, amend, or revoke an interim order without invoking the authority of Section 1008. The controversy in <i>Morite</i> centered on a court’s decision during a status conference to ignore a prior judge’s order to stay proceedings. <i>Morite, supra</i>, 19 Cal. App. 4th at 488-490. Rather than meeting the jurisdictional prerequisite findings required by Section 1008, the court set a number of causes of action for trial on the ground that the plaintiff believed the matters could be resolved pursuant to motions for summary judgment. <i>Id.</i> at 498. The lower court justified its actions under its authority to manage its calendar, rather than under Section 1008. <i>Id.</i> The reviewing court vacated the lower court’s order setting the causes of action for trial, finding that the lower court’s “implicit reconsideration of the prior stay order[] ultimately deprived petitioners of a
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	meaningful opportunity to argue the provisions of section 1008 . . . or to present argument that the stay order should not be modified, amended, or revoked” Accordingly, a court exceeds its jurisdiction when it <i>sua sponte</i> reconsiders and thereafter amends, modifies, or vacates a prior order without invoking the authority of Section 1008. This does not, however, foreclose an applicant seeking relief from a prior order under Section 473. Additionally, the Court finds an important temporal and substantive distinction between motions for reconsideration under Section 1008 and requests for relief under Section 473. Reconsideration is predicated on “new or different facts, circumstances, or law” that were not known or presented to the court at the time of the challenged order that relate to the substantive merits underlying the court’s ruling. Cal. Civ. Proc. Code § 1008(b). By contrast, relief under section 473 is directed not at the merits of the court’s underlying ruling, but at the consequences of a judgment, order, or other proceeding entered as a result of a party’s or counsel’s “mistake, inadvertence, surprise, or excusable neglect.” Cal. Civ. Proc. Code § 473(b). In other words, section 473 addresses errors or omissions that prevented the matter from being properly presented, rather than providing a vehicle to relitigate the substantive factual or legal basis of the court’s prior ruling. Here, Defendant seeks relief from the Court’s order granting Plaintiff’s Motion to Compel the Deposition of Defendant’s PMQ and imposing sanctions upon Defendant’s counsel for their failure to appear for IDC. ROA 81. The Court’s order does not result in default, default judgment, or dismissal; thus, Defendant is not eligible for mandatory relief under the attorney-fault provision of Section 473(b). Additionally, the relevant sections of the Civil Discovery Act do not contain specific provisions governing the relief sought by Defendant. <i>See</i> Cal. Civ. Proc. Code §§ 2025-2025.620. Accordingly, Defendant is entitled to seek relief
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	under Section 473. In determining whether the attorney’s mistake or inadvertence is excusable, courts inquire whether a reasonably prudent person under the same circumstances would have made the same error. <i>Hover v. MacKenzie</i>, 122 Cal. App. 2d 852, 857 (1944). “Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not...excusable. <i>McClain v. Kissler</i>, 39 Cal. App. 5th 399, 414 (2019) (quoting <i>Zamora v. Clayborn Contracting Group, Inc.</i>, 28 Cal. 4th 249, 258 (2002)). Clerical and ministerial errors weigh in favor of granting relief. For example, courts have set aside judgments in the following situations: (1) The attorney mistakenly checked the ‘with prejudice’ box instead of the ‘without prejudice’ box (see <i>Romadka v. Hoge</i>, 232 Cal. App. 3d 1231, 1237 (1991)); (2) an associate misinterpreted the instructions of the lead attorney and gave incorrect information at a hearing (see <i>Bergloff v. Reynolds</i>, 181 Cal. App. 2d 349, 358–359 (1960)); and (3) the attorney’s secretary lost the answer to be filed (see <i>Alderman v. Jacobs</i>, 128 Cal. App. 2d 273, 275–276 (1954)). <i>Zamora, supra</i>, 28 Cal. 4th at 259. Here, the Court granted Plaintiff’s M-DEPO when Defendant counsel failed to appear for an Informal Discovery Conference (“IDC”) as ordered. ROA 60. Defendant counsel offers that their failure to appear was the result of a calendaring issue attributable to a confluence of unforeseen clerical and technological errors. ROA 79, ¶ 2. Defendant offers that affirmative measures have been implemented to prevent the issue from recurring. ROA 79, ¶ 3. In light of the foregoing, the Court finds that Defendant’s failure to appear for IDC was the result of excusable neglect. The party seeking relief must be diligent. “Application for
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	this relief . . . shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” Cal. Civ. Proc. Code § 473(b). Here, the Court issued its order granting Plaintiff’s M-DEPO and imposing monetary discovery sanctions upon Defendant on February 23, 2026. ROA 60. Defendant filed their Motion for Relief on March 18, 2026. ROA 81. Accordingly, the Court finds that Defendant has been diligent in seeking relief. Courts also consider prejudice to the opposing party. “Section 473 is often applied liberally where the party in default moves promptly to seek relief, and the party opposing the motion will not suffer prejudice if relief is granted.” <i>Elston v. City of Turlock</i>, 38 Cal. 3d. 227, 233 (1985) (citing <i>Berri v. Rogero</i>, 168 Cal. 736, 740 (1914)). “The law looks with [particular] disfavor on a party who, regardless of the merits of his cause, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.” <i>Zamora, supra</i>, 28 Cal. 4th, at 258 (citing <i>Reed v. Williamson</i>, 185 Cal. App. 2d 244, 248 (1960)). Here, the Court finds that should Defendant’s relief be granted, Plaintiff will neither suffer a substantial change in position nor be precluded from obtaining a judgment in Plaintiff’s favor on the merits of their M-DEPO. Consequently, Plaintiff will not suffer prejudice should the Court grant Defendant’s motion. “[B]ecause the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” <i>Maynard v. Brandon</i>, 36 Cal. 4th 364, 371 (2005) (citations omitted). In the Court’s interpretation of the authority cited throughout, the public policy weighing in favor of the party seeking relief applies principally to cases of default judgment. Here, the Court’s order granting Plaintiff’s M-DEPO for Defendant’s failure to appear for IDC does not result in final adjudication and has minimal impact on the
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	parties' ability to resolve the underlying case on the merits. Thus, the Court finds that the public policy considerations are not applicable to the Court's Order at controversy here. Regardless of the foregoing, the Court finds that the factors considered above weigh in favor of granting Defendant's sought after relief. Accordingly, the Court makes the following Orders: Defendant's Motion to vacate the Court's February 23, 2026, Order granting Plaintiff's Motion to Compel Deposition and imposing monetary sanctions upon Defendant's counsel is GRANTED. The Court's February 23, 2026, Order (ROA 60) is VACATED. Plaintiff's Motion to Compel Deposition of Defendant's Person Most Qualified (ROA 32) is restored to August 12, 2026, at 9:00 a.m. in this department. Note, this is for calendaring only, not to be heard on the merits. Parties are ORDERED to attend an Informal Discovery Conference ("IDC") on August 12, 2026, at 9:00 a.m. in this department. Parties are to submit a Joint Letter Brief, not exceeding four pages, single-spaced, in letter format, no later than five (5) court days prior to the IDC. Personal appearance is mandatory. Parties present must have unconstrained authority to resolve. Defendant to give notice.
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